

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: appellate judgment implementing a mixed jurisdiction-and-merits disposition.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Judgment

Judgment

Entered June 30, 2026.

In accordance with the published opinion entered today, the Court adjudges as follows. The portion of Officer Nolan Rusk's interlocutory appeal that asks this Court to reassess whether the district evidence can support Mara Ellison's account is dismissed for lack of appellate jurisdiction. That dismissal includes the request to derive a forearm strike, duty-belt reach, or immediate danger from obstructed camera views, disputed testimony, and unattributed sounds.

The Court has jurisdiction to review the separate legal denial of qualified immunity on the facts the district court assumed in Ellison's favor. On those assumptions, the denial is affirmed. The assumed facts exclude a strike, grab, flight, reach toward police equipment, and immediate safety threat, while including noncompliance and pulling from wrist control. The judgment does not declare that this version occurred.

The case is returned for further proceedings consistent with the opinion. The district court and any trial factfinder remain free to resolve the competing historical accounts through lawful procedures. Each side shall bear its own appellate costs.

Judgment boundary and administrative directions

This judgment does not affirm an evidentiary finding that Ellison never struck Rusk or moved toward his belt. It likewise does not accept Rusk's contrary testimony. It preserves the January 9 order's conditional structure: qualified immunity is unavailable if the factfinder accepts the plaintiff-favorable version, while the legal consequences of materially different trial findings are not decided here.

The Clerk shall issue the mandate in the ordinary course under the Federal Rules of Appellate Procedure unless a timely petition, motion, or further order changes that schedule. The district court docket and counsel shall receive electronic notice of this judgment and the accompanying published opinion.

The disposition is accurately summarized as: factual-sufficiency component dismissed; legal qualified-immunity denial affirmed on assumed facts. Neither phrase should be severed from the opinion's explanation of appellate jurisdiction, force proportionality, clearly established law, and the post-incident status of intervening authorities.

Entered at the direction of the panel on June 30, 2026. For the Court, by the Clerk.